SECTION 2: FIVE-NINES (99.999%) AVAILABILITY COMMITMENT

Section 2.1 - 99.999% End-to-End Site Availability Guarantee

Provider contractually guarantees 99.999% monthly end-to-end availability (<26 seconds of unscheduled outage per calendar month) for all dual-transport SD-WAN + 10Gbps Optical Wavelength clinic locations.

SECTION 3: HEALTHCARE <12.0ms LATENCY GUARANTEE & PENALTY SCHEDULE

Section 3.1 - Mandatory <12.0ms Epic EHR Round-Trip Latency SLA & 15% Credit Tier

Provider guarantees that 5-minute 95th-percentile round-trip latency from each of the 45 Apex Health clinics to the Primary Epic EHR Enclave (POP-QCY-01) shall remain strictly below 12.0ms. Based on Cloud Spanner live optical path telemetry, all 45 clinics operate between 1.5ms and 10.4ms (including Site #28 Wenatchee at 4.6ms and Site #33 Hood River at 6.8ms post-fiber build). For every 1.0ms above 12.0ms, Customer receives an automatic 15% MRC service credit for the affected site up to 100% of monthly charges.

Section 3.2 - Jitter (<=1.5ms) and Packet Delivery (>=99.99%) Guarantees

Provider guarantees inter-packet jitter <=1.5ms and packet loss <0.01% across all EF and AF41 clinical traffic classes.

Section 3.3 - Chronic Latency Termination Right (>18.0ms for 3 Consecutive Days)

If any clinic experiences round-trip latency exceeding 18.0ms for three (3) consecutive calendar days (excluding customer-induced LAN overload or municipal civil force-majeure cuts where diverse backup transport remains <15.0ms), Customer may terminate the affected site circuit for cause with zero Early Termination Fee (ETF).

SECTION 4 & 5: OPTICAL MTTR & AUTOMATED TELEMETRY BILLING CREDITS

Section 4.1 - <50ms Core Protection & 4-Hour Physical Fiber Cut MTTR

Core DWDM ring protection switches in <50ms. Physical last-mile fiber cuts carry a guaranteed <2-hour technician dispatch and <4-hour physical splice restoral SLA.

Section 5.2 - Zero-Touch Automated SLA Credit Issuance

TWAMP/Y.1731 telemetry streams directly into our BigQuery SLA accounting engine and automatically posts earned service credits to the next monthly EDI 810 invoice without requiring Customer to open a manual credit claim ticket.

SECTION 6 & 7: CYBER SUPER-CAP, CAPEX AMORTIZATION & PORTABILITY

Section 6.4 - HIPAA BAA Cyber & Regulatory Liability Super-Cap

Our standard Healthcare BAA includes a $5,000,000 Cyber & HIPAA Regulatory Super-Cap (3x standard enterprise cap), with executive underwriting available up to $10,000,000 for Tier-1 multi-hospital networks.

Section 7.1 - 36-Month Near-Net CAPEX Amortization & 5-Site Portability Flex Clause

Near-Net lateral fiber construction CAPEX up to $15,000 (including the $4,200 total for Apex Health Sites #28 and #33) is 100% waived upfront and folded into the 36-month contract amortization schedule ($116.67/month total), preserving a 42.4% deal gross margin. Furthermore, Customer may relocate or decommission up to 5 On-Net clinic circuits after Day 180 with zero ETF.